

Dear Members of the Utah State Charter School Board,

My wife and I are the parents of a student at Vista School, a public charter school authorized by the Utah State Charter School Board (SCSB), and I am writing to raise a serious concern about student behavior and safety at the school. I am bringing this to the Board because it involves ongoing student safety and the adequacy of the school's supervision and reporting practices, and because the Board is charged with monitoring the schools it authorizes for compliance with state and federal law.

My wife and I have raised similar concerns about bullying and inappropriate behavior with the school. Rather than answering our questions about its policies and supervision practices, the school responded that it could not disclose certain details and cited FERPA. As I explain below, my questions are about policy and process and do not seek any student's records, so FERPA does not apply. Having been unable to get answers or seen any action being taken at the school level, I am now bringing the matter to the Board as the school's authorizer.

My child has directly witnessed some students, particularly among the boys, engaging in bullying and using crude and intimidating language in front of other students. This has included boys making comments about physically harming their own private parts, and then actually doing so in front of other students. Whether or not it is intended as joking, it is inappropriate, it is intimidating to the girls and other children who witness it, and it contributes to an environment that does not feel safe or respectful.

From what the school has told us, its primary safeguarding tool is camera surveillance, but my understanding is that the footage is only reviewed when an incident is reported, and the cameras capture no audio. However, students do not reliably report what happens, either because they do not understand that it is inappropriate or because they are afraid the offending students will retaliate. The result is that this kind of behavior can continue unaddressed and only reaches a parent's attention months after it occurred. A safeguard that depends entirely on a child coming forward is not preventing anything.

I want to be clear about what I am and am not asking. I am not requesting any other student's records or personally identifiable information. My questions are about school policy, supervision practices, and process, none of which are protected education records under FERPA. With that stated plainly, I ask the Board to look into the following and to require Vista School to answer:

- What is the school's written policy defining bullying and harassment, and what is the standard range of consequences once an incident is substantiated? (This is a policy question and involves no student records.)
- Since camera footage is only reviewed after a report is filed, what proactive supervision does school policy require so that incidents are caught rather than depending on a child to come forward?
- Because the cameras record no audio, what is the school's procedure for identifying and addressing verbal harassment and inappropriate conduct?
- Once a concern is raised, what is the documented process and expected timeline for staff to act on it, so that reports are handled promptly?

- What system does the school use to track patterns of reported incidents over time, so that repeated or escalating behavior is recognized?
- What is the school's policy for handling reports that surface long after an incident occurred, so that delayed reports are still properly investigated and addressed?
- On an aggregate, de-identified basis, how many bullying or harassment incidents have been reported schoolwide in the past year, and how many were substantiated?

None of these questions asks about an individual student, so FERPA does not apply to any of them, and it does not justify the school declining to answer them. If the school maintains otherwise, I would ask that it be required to identify the specific education record and the specific student that answering a general policy question would disclose.

I would also ask the Board to clarify the following, specific to its own oversight role:

- What authority does the SCSB have to review a charter school's bullying, harassment, and student-safety policies, and to verify that a school's supervision practices are adequate, as part of its authorizing and monitoring responsibilities?
- Does the Board require charter schools to report bullying and harassment incident data as part of compliance monitoring, and if so, is that data available for Vista School?
- What is the Board's process for receiving and acting on a parent complaint like this one, and what would the Board consider an appropriate next step, whether that is a request for information from the school, a site visit, or a referral back to the school's governing board?

I am raising this concern in good faith because I want Vista School to succeed and to be a place where every child feels safe and respected. I would appreciate a written response, and I would like to know how the Board will handle this matter, including whether it will be placed on the agenda for an upcoming Board meeting.

Thank you for your time and for your service to Utah's charter school community.

Sincerely,

A Concerned Parent